

Court No. - 32

Case :- WRIT - C No. - 29704 of 2018

Petitioner :- Raja Ram Sharma

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Rajesh Kumar Shukla

**Counsel for Respondent :- C.S.C., Amrendra
Nath Singh, Kapil Dev Singh Rathore**

Hon'ble Shashi Kant Gupta,J.

Hon'ble Ajit Kumar,J.

This writ petition has been filed, inter alia, for the following reliefs:

"(A) Issue a writ, order or direction in the nature of mandamus commanding the respondent no. 3 to consider and calculate the Bill of the petitioner from 29.09.2017 to 06.08.2018 as per Rules of calculation of Bills and adjust the amount which has been paid excess by petitioner.

(B) To consider and decide the application of the petitioner with regard to correction of Bills dated 28.05.2018 pending before the respondent no. 2 within the stipulated period.

Heard learned counsel for the petitioner, learned counsel for the Electricity Department and perused the record.

The petitioner is raising a dispute with regard to the correctness of the bill.

At the very outset, learned counsel appearing on behalf of the Electricity Department has stated that the petitioner has got an alternative remedy under Clause 6.5 of the U.P. Electricity Supply code, 2005 to ventilate his grievance.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the appropriate authority for redressal of his grievance, his application may be considered and decided by the said authority within 7 days by a speaking order in accordance with law provided there is no legal impediment.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 31.8.2018

Arun